

24STCV08786 24STCV08786

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Division: Civil Law and Motion

Department: 408

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Case Number: 24STCV08786 Hearing Date: September 3, 2026 Dept: 408

Defendant/Cross-Complainant 550 West Regent Street

Homeowners Association, Inc.'s Counsel

Zachary Levine, Esq.'s Motion to be Relieved as Counsel is GRANTED, effective upon the filing of proof of service showing service of the signed order.

I.

BACKGROUND

On April 8, 2024, Plaintiff Lyons

LA, Inc. ("Lyons") filed a complaint against Defendant 550 West Regent Street

Homeowners Association, Inc. ("550 West") alleging causes of action for:

1.

Breach

of Contract; and

2.

Declaratory

Relief.

On May 31, 2024, 550 West filed an

answer to Lyons' complaint.

On June 3, 2024, 550 West filed an

amended answer to Lyons' complaint and a cross-complaint in pro per against Lyons.

On

June 17, 2024, after retaining counsel, 550 West filed a cross-complaint.

On June 4, 2025, Lyons filed an answer to 550 West's cross-complaint.

On August 5, 2026, counsel for 550 West, Zachary Levine, Esq. ("Counsel"), filed: (1) MC-051, Motion to be Relieved as Counsel; (2) Declaration in Support of Motion to be Relieved as Counsel; (3) MC-053, Proposed Order; and (4) Proof of Service. No opposition or other responsive pleading has been filed.

II.

LEGAL

STANDARD

"The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination, as follows: 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; 2. Upon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.)

An attorney moving to be relieved as counsel under California Code of Civil Procedure section 284(2) must meet the requirements set out in California Rules of Court, rule 3.1362. To comply with Rule 3.1362, the moving party must submit the following forms: (1) Notice of Motion and Motion to be Relieved as Counsel; (2) Declaration in Support of Attorney's Motion to be Relieved as Counsel; and (3) Order Granting Attorney's Motion to be Relieved as Counsel. (Cal. Rules of Court, Rule 3.1362, subd. (a), (c), (e).)

The moving party must serve the aforementioned forms on the client and all other parties who have appeared in the case. (Cal. Rules of Court, Rule 3.1362, subd. (d).) Further, when the client is served by mail, the attorney's declaration must show that the client's address was confirmed within the last 30 days and how it was confirmed. (Ibid.)

Absent a showing of resulting prejudice, an attorney's request for withdrawal should be granted. (People v. Prince (1968) 268 Cal.App.2d 398, 406.)

III.

DISCUSSION

Counsel's motion complies with the requirements of California Rules of Court, rule 3.1362, in that Counsel provided a motion to be relieved as Counsel; a declaration in support; a proposed order granting Counsel's motion; and proof of service as to 550 West.

The declaration states that there has been a breach in the retainer agreement and a breakdown in attorney-client communication. (Wolk Decl., ¶ 2.)

The court determines that the requirements of Rule 3.1362 enumerated above have been sufficiently met. The court grants the requested withdrawal effective upon the filing of proof of service showing service of the signed order to 550 West.

IV.

CONCLUSION

Defendant/Cross-Complainant 550 West Regent Street Homeowners Association, Inc.'s Counsel Zachary Levine, Esq.'s Motion to be Relieved as Counsel is GRANTED, effective upon the filing of proof of service showing service of the signed order.